

**13. S-CV-0056373 City of Lincoln v. Shelgren, Christian A**

Petition for order to abate substandard building; appointment of receiver; requiring reimbursement

Petitioner seeks a court order to abate substandard building; order to appointment of receiver; and an order requiring reimbursement.

The court previously twice continued the matter for insufficient notice of hearing on interested parties and lack of proper proof of service of summons for the respondent. After the two continuances, petitioner sent notice of hearing to all interested parties and filed proper proof of service for the respondent property owner.

The motion on the petition to abate substandard building, appoint receiver, and require reimbursement is granted. The court finds notice was properly given to respondent and interested parties and the factors in Health and Safety Code section 17980.7, subdivision (c) support the appointment of a receiver. (Health & Safe. Code, §§ 17980.6, 17980.7, subd. (c).) The court incorporates by reference the findings outlined in the proposed receivership order lodged with the court on October 24, 2025.

**14. S-CV-0056993 Stepanov, Ivan v. Uren, Brittany Leann**

The demurrer to the second cause of action of the complaint is dropped as moot in light of the dismissal of the second cause of action of the complaint filed on May 7, 2026.

**15. S-CV-0057073 Foulk, Steven R v. LoanDepot.com**

If oral argument is requested, it will be heard in Department 32 by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Injunction

Plaintiff moves for a preliminary injunction against defendant Selene Finance LP ("Selene") pursuant to Code of Civil Procedure sections 526 and 527. Specifically, plaintiff seeks a court order requiring defendant to pay all homeowner's insurance premiums from plaintiff's escrow account, to refrain from collecting or demanding monthly mortgage payments in excess of the agreed-upon amounts, and to refrain from initiating or advancing any foreclosure-based proceedings. Defendant Selene opposes the motion.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, "the court must consider whether the party seeking the injunction is